

26STCV22574 26STCV22574

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Case Number: 26STCV22574 Hearing Date: September 21, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: September 21, 2026

Case Name: Gallaher v. United Parcel

Service, Inc., et al.

Case

No.: 26STCV22574

Matter: Motion on Change of Venue

Moving

Party: Defendant United Parcel

Service

Responding Party: Plaintiff Travis Martin Gallaher

Tentative

Ruling: Defendant United Parcel

Service's motion to change venue is denied.

Plaintiff

Travis Martin Gallaher ("Plaintiff") filed this action against Defendants

United Parcel Service, Inc. ("UPS"), Carlos Padilla ("Padilla"), Diego Leon

("Leon"), Carlos Gutierrez ("Gutierrez"), and Does 1 through 100. The Complaint

alleges eight causes of action for: (1) hostile work environment in violation of FEHA; (2) discrimination in violation of FEHA; (3) retaliation in violation of FEHA; (4) failure to prevent discrimination, harassment, or retaliation in violation of FEHA; (5) negligent hiring, supervision, and retention; (6) wrongful termination of employment in violation of public policy; (7) whistleblower retaliation (Labor Code section 1102.5); and (8) intentional infliction of emotional distress.

UPS moves to transfer Plaintiff's case to Imperial County Superior Court. Plaintiff opposes.

Legal Standard

"Venue is determined based on the complaint on file at the time the motion to change venue is made. [Citations.]" (Brown v. Superior Court (1984) 37 Cal.3d 477, 482.) Code of Civil Procedure section 397, subdivision (a) provides that "[t]he court may, on motion, change the place of trial when the court designated in the complaint is not the proper court." (Code Civ. Proc., § 397, subd. (a).) Code of Civil Procedure section 397, subdivision (c) states the court may change venue, "[w]hen the convenience of witnesses and the ends of justice would be promoted by the change." (Id. at § 397, subd. (c).)

Analysis

UPS moves to transfer Plaintiff's case to Imperial County Superior Court pursuant to FEHA, on a discretionary basis, and seeks attorney's fees.

Preliminary

Issue of Joinder

Defendants

Padilla, Leon, and Gutierrez filed a notice of joinder to UPS' motion. While it is permissible for a co-party with identical interests to join on a motion. (See Calvert Fire Ins. Co. v. Cropper (1983) 141 Cal.App.3d 901, 905.) Here, Defendants Padilla, Leon, and Gutierrez did not provide the Court with any argument or basis to allow joinder of the motion.

Thus, the Court denies Defendants

Padilla, Leon, and Gutierrez's motion for joinder.

Motion
to Change Venue

Government
Code section 12965, subdivision (c) states that:

The superior courts
of the State of California shall have jurisdiction of actions brought pursuant
to this section, and the aggrieved person may file in these courts. An action
may be brought in any county in the state in which the unlawful practice is alleged
to have been committed, in the county in which the records relevant to the
practice are maintained and administered, or in the county in which the
aggrieved person would have worked or would have had access to the public
accommodation but for the alleged unlawful practice, but if the defendant is
not found within any of these counties, an action may be brought within the
county of the defendant's residence or principal office.

(Govt. Code, § 12965, subd. (c)(3).)

UPS
contends that the only appropriate venue for Plaintiff's case is Imperial
County because Plaintiff's workplace interactions occurred in the El Centro
facility. (Mot., 5:1.) UPS also contends that all of Plaintiff's relevant employment
records are maintained in Imperial County. (Mot., 5:7-12.)

However,
UPS makes these allegations without any evidentiary support. In reply, UPS
attempts to cure its procedural defect by providing evidence that was required
when it filed its motion, but failed to do so. ""The general rule of motion
practice ... is that new evidence is not permitted with reply papers."" (Maleti
v. Wickers (2022) 82 Cal.App.5th 181, 227.) The reason for not allowing new
arguments in the reply papers "is based on the same solid logic applied in the
appellate courts, specifically, that '[p]oints raised for the first time in a
reply brief will ordinarily not be considered, because such consideration would
deprive the respondent of an opportunity to counter the argument.'" (Jay v.
Mahaffey (2013) 218 Cal.App.4th 1522, 1538.) Thus, UPS has not presented
the Court with any evidence to support its claims.

In

opposition, Plaintiff provides evidence to support its claim that pursuant to Government Code section 12965, subdivision (c), Los Angeles is the proper venue because he would have continued working in Los Angeles had it not been for the unlawful practice. Plaintiff declares that he “drove commercial semi-trucks and trailers in Los Angeles County.” (Gallaher Decl., ¶¶ 3-4.) “Generally, when venue is proper in more than one county, a plaintiff has the choice of where to file the action from among the available options.” (Battaglia Enterprises, Inc. v. Superior Court (2013) 215 Cal.App.4th 309, 313.) “The moving party must overcome the presumption that the plaintiff has selected the proper venue.” (Fontaine v. Superior Court (2009) 175 Cal.App.4th 830, 836.) Thus, UPS has not met its burden to warrant transfer of Plaintiffs' case.

UPS also

argues that Los Angeles is an inconvenient forum under Code of Civil Procedure section 397 (c), based on the convenience of witnesses. However, UPS provides no evidence to support its argument.

Therefore, UPS's

motion to change venue is denied in its entirety.

Plaintiff also

requests that Defendant pay all necessary fees associated with the filing of its motion without any legal authority. Specifically, Plaintiff seeks an award of fees in the amount of \$7,200.00 pursuant to Code of Civil Procedure section 396b, subdivision (b). An award of fees and costs is not warranted under the circumstances here.

Thus, Plaintiff's

request for sanctions is denied.

Conclusion

Defendant

United Parcel Service's motion to change venue is denied.